

Copilot copyright suit: Some relief for the defendants

In a recent twist in the case against GitHub, OpenAI, and Microsoft AI for code-copying, the judge's verdict has dismissed some of the plaintiffs' claims. The lawsuit, initiated by five unidentified developers in November 2022, alleges copyright infringement and software licensing violations by Copilot, an AI code-suggestion tool built atop OpenAI's Codex model and deployed by Microsoft's GitHub.

The January 3, 2024, order partially grants and denies the defendants' motion, allowing damage claims by three developers to proceed. This opens the door for the entire affected developer class to seek damages, expanding the potential consequences for the defendant companies.

However, two of the plaintiffs' core claims survive unscathed: GitHub's alleged violation of terms by monetising user code and the violation of open source licences attached to code emitted by Copilot and Codex.

The judge did favour the defendants in dismissing state law claims such as interference with economic relations and unjust enrichment, deeming them pre-empted by federal copyright law. Yet, he left room for the unfair competition claim to be revived if tied to federal copyright law.

The judge also rejected the plaintiffs' claims under Sections 1202(b)(1) and 1202(b)(3) of the US Digital Millennium Copyright Act, stating these violations can only occur when the copied works are identical, reducing potential liability for the defendants.

As OpenAI remained silent, a spokesperson for Microsoft-owned GitHub asserted confidence in Copilot's adherence to laws, maintaining their commitment to responsible innovation.

Firefox 121 brings a host of other improvements too. Users can now force-underline links, edit PDFs more intuitively, and enjoy voice control commands on macOS. For Linux users, bug fixes include resolving PiP window display issues, refining dialogue/window sizing for KDE Wayland, and adhering to the latest Flatpak spec.



Speaking on the release, Mozilla emphasised its commitment to keeping pace with technological changes. This update not only ensures a solid, dependable, and integrated experience for Linux users but also reflects the evolution of the Linux ecosystem.

Existing users can receive the update through various channels, while those eager to explore the enhancements can download Firefox 121 directly from the official website. As the update rolls out, users are encouraged to share their experiences in the comments section.

MIT unveils open source hydrogen motorcycle

MIT's EV team has rolled out an open source hydrogen fuel cell-powered electric motorcycle. The design, with swappable parts, allows riders to construct and customise their bikes, steering away from traditional manufacturing processes.



Image Source: <https://www.designboom.com/technology/>

The two-way open source platform facilitates easy maintenance and experimentation. "Our goal was to create a motorcycle that riders could customise and build on their own," noted a team spokesperson.